



NOTICE OF SERVICE – URGENT APPLICATION – Case No: 2026-066952 – Matthee v Fernandes & Others – Western Cape High Court – 25 March 2026 at 10:00

2 messages

Wilbur William Matthee <wilburmat@gmail.com> Mon, 23 Mar 2026 at 13:56
To: ferfam.bruno@gmail.com, munisinf@global.co.za, alicel@aliceleroux.co.za, gerald.vanwyk@afrocentrichealth.com, lebohang.mpumlwana@afrocentrichealth.com, CCMA communication <IR@afrocentrichealth.com>
Cc: KMongalo@beecommission.gov.za, MRamare@beecommission.gov.za, omokoto@beecommission.gov.za
Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

FORMAL NOTICE OF SERVICE OF URGENT APPLICATION

Dear Sir / Madam,

You are hereby formally served with the application papers in the above-captioned matter, filed in the Western Cape High Court under Case Number 2026-066952.

1. NATURE OF THE APPLICATION

This is an urgent application in terms of Rule 6(12) of the Uniform Rules of Court for:

- (a) A primary declaratory finding under Section 60(3) of the Employment Equity Act 55 of 1998;
- (b) A declaration that you are a delinquent director and/or officer in terms of Section 162(5)(c) and/or (d) of the Companies Act 71 of 2008, for a period not less than seven years;
- (c) Consequential damages jointly and severally; and
- (d) Costs on the attorney-and-client scale.

2. HEARING DATE AND TIME

The matter is enrolled for hearing at the Western Cape High Court, Keerom Street, Cape Town, on:

WEDNESDAY, 25 MARCH 2026 AT 10:00

or as soon thereafter as the matter may be heard.

3. DOCUMENTS SERVED HERewith

The following application documents are attached to this email:

- (a) Notice of Motion;
- (b) Founding Affidavit of Wilbur William Matthee (signed and sworn 19 March 2026) with all Annexures A to G (including sub-annexures D1 to D9);
- (c) Practice Note; and
- (d) Bundle Index.

4. NOTICE TO OPPOSE

TAKE NOTICE that if you intend to oppose this application, you are required to deliver a written notice of intention to oppose to the Applicant by:

NO LATER THAN 22:00 ON MONDAY, 23 MARCH 2026

(being 12 hours from the time of this service)

Your notice of intention to oppose must be delivered by email to:
info@ethichawks.co.za

5. ANSWERING AFFIDAVIT

Should you deliver a notice of intention to oppose, your answering affidavit must be delivered to the Applicant by:

NO LATER THAN 14:00 ON TUESDAY, 24 MARCH 2026

(being no later than 24 hours from the time of this service, and no later than two hours before the scheduled hearing)

Your answering affidavit must be delivered by email to:
info@ethichawks.co.za

6. FAILURE TO OPPOSE

TAKE NOTICE FURTHER that if you fail to deliver a notice of intention to oppose within the time specified above, or fail to deliver an answering affidavit within the time specified, the matter will proceed as an UNOPPOSED APPLICATION on 25 March 2026 at 10:00 and the Applicant will move for the full relief set out in the Notice of Motion, including a declaration of delinquency for a minimum period of seven years and consequential damages in an amount to be determined by this Honourable Court, jointly and severally

7. URGENCY

The compressed timelines are necessitated by the urgency of this matter. The Applicant faces confirmed eviction at the end of March 2026 and has no income, no running water, and his SANC registration has lapsed. The basis for urgency is fully set out in the Founding Affidavit at paragraphs 46 to 46.5.

The Applicant notes that each of you has been on formal notice of the substance of this application since at least 9 December 2025 through the Priority 1 Material Risk Report delivered to the Board with 38 attachments, and since 14 March 2026 through the Final Good Faith Notice. The application and its factual basis are not new to you.

8. PROOF OF SERVICE

Service is effected by email at the following addresses simultaneously:

First Respondent (Bruno Fernandes): ferfam.bruno@gmail.com

Second Respondent (Dr Nkateko Munisi): munisinf@global.co.za

Third Respondent (Ms Alice le Roux): alice@aliceleroux.co.za

Fourth Respondent (Mr Gerald Van Wyk): gerald.vanwyk@afrocentrichealth.com

Fifth Respondent (LSM Mpumlwana): lebohang.mpumlwana@afrocentrichealth.com

Sixth Respondent (AfroCentric Investment Corporation Limited): c/o Fifth Respondent above

Proof of this service will be uploaded to the Court Online portal (Case No: 2026-066952) immediately upon sending.

Yours faithfully,

WILBUR WILLIAM MATTHEE
APPLICANT – SELF-REPRESENTED
15 Bellevue Street, Voorbrug, Cape Town, 7100
Email: info@ethichawks.co.za
Tel: 069 635 1435

Case No: 2026-066952
OCJ Reference: HCGS953346
Hearing: 25 March 2026 at 10:00
Court: Western Cape High Court, Keerom Street, Cape Town



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8,6 MB

Mail Delivery Subsystem <mailer-daemon@googlemail.com>
To: wilburmat@gmail.com

Mon, 23 Mar 2026 at 13:57



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